

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

September 9, 2013

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Mr. Brown, Ms. Broyles, Mr. Cook, Mr. Luna, Dr. Rinne, Mr. Shanor, Mr. Valdez and Ms. Williams. Also present: Carol Intlekofer, City Clerk; Lois Huff, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Mr. Allen moved to suspend the rules to change the order of the agenda to bring forward agenda item #16 (Resolution determining conditions for annexation exist for Terre Pont) for action immediately prior to agenda item #11 (Ordinance regarding annexation for Terre Pont), seconded by Dr. Rinne. Motion carried. Voting "yes" -- all members of the governing body.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.). Mr. Allen moved to approve, seconded by Mr. Luna. Motion carried. Voting "yes" -- all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on August 26, 2013. Motion (per Consent Agenda) carried.

Mr. Brown declared a conflict of interest (business interest in voucher payable to Ameri-Tech HVAC) and vacated Council Chambers. Mr. Valdez moved to approve payment of vouchers as presented, seconded by Mr. Allen. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown returned to Council Chambers.

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from MUB Mixed-Use Business Emphasis to P Public for a portion of Lot 1, Block 2, and ½ of vacated Vosler Place, Plaza Del Range, Cheyenne, Wyoming (located at the northwest corner of the intersection of Sheridan Street and Ridge Road). Reporting for Public Services Committee, Mr. Allen moved to approve on third and final reading, seconded by Mr. Shanor. Motion carried. Voting "yes" -- all members of the governing body. (#3996)

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3 Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from A-1 Agricultural and Rural

Residential (County) to MUR Mixed-Use Residential Emphasis for Snyder Plaza, Cheyenne, Wyoming (located east of and adjacent to Snyder Avenue, north of W. Allison Road). Brad Emmons, A.V.I. Engineering, agent for the applicant, advised they would like to postpone the item for two weeks to allow for additional public notification and comment, and to hold a public open house. Mr. Allen moved to approve on third and final reading, seconded by Mr. Shanor. Mr. Allen moved to postpone for two weeks (to Sept. 23, 2013), seconded by Mr. Shanor. Motion to postpone carried. Voting "yes" -- all members of the governing body.

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from A-1 and MU (County) to CB Community Business for a parcel of land situated in a portion of the South Half of Section 20, T.14N., R.66W., 6th P.M., Cheyenne, Wyoming, to be known as Lots 1 and 2, Block 1, Terre Pont (located at the northeast corner of the intersection of Frontier Mall Drive and Prairie Avenue). Mr. Allen moved to approve on third and final reading, seconded by Mr. Shanor. Motion carried. Voting "yes" -- all members of the governing body. (#3997)

ORDINANCE - Amending, creating, deleting and re-creating various chapters and sections within Title 15, Buildings and Construction, of the Cheyenne City Code relating to General Provisions, and including Adoption of the International Building Code and other Related Codes, 2012 Edition; The National Electrical Code, 2011 Edition; and the International Energy Conservation Code, 2009 Edition. Mr. Allen moved to approve on third and final reading, seconded by Ms. Williams. Mr. Allen moved to amend Section 11 to read as follows: "This ordinance shall be in full force and effect upon approval and publication, but not sooner than November 1, 2013", seconded by Mr. Shanor. Upon inquiry by Paul Frauendienst regarding purpose of the amendment, it was advised that the effective date of November 1st had been inadvertently excluded from the ordinance. Motion to amend carried. Voting "yes" -- all members of the governing body. Discussion followed on Section 15.08.020, Amendments, paragraph B. pertaining to deleting and re-creating Section 102.4.1 wording and which code, the International Building Code (IBC) or International Fire Code (IFC), would prevail if a conflict occurred between the two codes. Bruce Wilson, Chief Building Official, verified the International Energy Conservation Code would not be excluded in the proposed change as it is included in the IBC, and that intent of the wording is to clear up any conflict with fire and building codes. Upon inquiry, Dan White, City Attorney, explained they wanted to make sure that the fire code would stand alone as a maintenance code; whereas the building code applies to new construction, remodels and alterations. He stated the change will ensure that the IBC would only supercede if there was a conflict, and, if there was a conflict, he advised that, generally speaking, then the fire code official, building code official and the property owner would discuss the matter to work out any areas involved in the conflict. Upon further inquiry, Mr. White advised the proposed wording does represent a City policy change. Further discussion followed on interaction between fire and building codes. Upon inquiry, Chief Jim Martin, Fire and Rescue Department, advised the proposed change was drawn up by the Fire Prevention Division and that, in the past, if there was a conflict between the codes staff attempted to work out the differences. Mr. Shanor moved to strike paragraph B. listed under Section 2., 15.08.020, Amendments, so that the language from the IBC 2012 code (i.e. Section 102.4.1) would remain

unchanged, seconded by Mr. Allen. Discussion followed on the current policy if conflicts arose between the IBC and IFC; objectivity; forthcoming ordinance to update the IFC, and whether other Wyoming communities had made a similar change as proposed in paragraph B. Mr. Wilson, upon inquiry, advised he wasn't aware of other communities in Wyoming making a similar amendment to the IBC code, and stated for clarification that during the building permit process that would be the ruling process but after completion of the building the fire code, which is a maintenance document, will be in effect. Motion to amend carried. Voting "yes" -- all members of the governing body with the exception of Mr. Brown, Ms. Broyles and Mayor Kaysen voting "no". Main motion carried. Voting "yes" -- all members of the governing body. (#3998)

RESOLUTION - Determining that conditions for annexation required by Wyo. Stat. §15-1-402 exist for a parcel of land being situated in a portion of Section 20, Township 14 North, Range 66 West of the 6th P.M., Laramie County, Wyoming, to be known as the Terre Pont annexation (located northeast of the intersection of Frontier Mall Drive and Prairie Avenue). Mr. Allen moved to adopt, seconded by Mr. Shanor. Motion carried. Voting "yes" -- all members of the governing body. (#5524)

ORDINANCE - Annexing to the City of Cheyenne, Wyoming, a parcel of land being situated in a portion of Section 20, Township 14 North, Range 66 West of the 6th P.M., Laramie County, Wyoming, to be known as the Terre Pont annexation (located northeast of the intersection of Frontier Mall Drive and Prairie Avenue). Mr. Allen moved to approve on second reading, seconded by Mr. Shanor. Motion carried. Voting "yes" -- all members of the governing body.

ORDINANCE - Pursuant to Sections 1.1.6 and 2.4.1 of the Cheyenne Unified Development Code, amending the landscaping requirements under Unified Development Code Sections 6.3.4a, 6.3.4b, and 6.3.7e. Brandon Cammarata, Planning and Development office, explained staff prepared a development report on the proposed change, which pertains to a text amendment to reduce landscaping requirements, and provided a brief history on landscaping provisions that have been in place since 1992. Commenting on the proposed ordinance were: Jan Nelson-Schroll; Mark Madsen; Boyd Wiggam, Wyoming Liberty Group; Barbara Brennan, Harmony Hearth and Home; Brian Tyrrell; M. Lee Hasenauer, Laramie County Commissioner; Nancy Loomis; Patrice Gopen; Major Dorr; Jean Vetter and Albert Simpson. Comments were made in support as well as non-support of the ordinance and included the following topics: Community impact concerns if amount of landscaping currently required was reduced; effecting a change for a small group of people (i.e. small businesses); support for providing more flexibility and better solutions; economic, social and property value benefits involving trees and landscaping; reducing landscaping requirements to support wise water use; Unified Development Code (UDC) requirements and financial effect on small businesses; applying for variances; allowing business owners to have more of a decision; Cheyenne as an urban landscape environment and implementing more conservation, irrigation and alternative measures to reduce water run-off; concerns with treating new (big) development the same as small business, multi-use or non-residential properties; uniform application of the UDC; difficulty of growing trees in Cheyenne's environment and safely maintaining larger trees; suggestion that the term

“redevelopment” be defined; concern with reducing landscaping requirements “across the board”; support for small businesses, and reducing the landscaping amount to reduce high water uses. Mr. Allen moved to approve on second reading, seconded by Mr. Shanor. Comment followed on new development vs. redevelopment. Mr. Shanor moved to amend by adding a sentence to Section 10 which would immediately precede the current sentence that starts with “ ... That the City Planning Office is ...”; said sentence to read “The amendments contained in Sections 6, 7, 8 and 9 herein are only applicable to UDC Section 6.3.2 (b), (c) and (d), the rest of 6.3.2 remains unaltered.”. Motion was seconded by Mr. Allen. It was noted the proposed amendment would focus only on re-development. Ms. Vetter questioned whether 6.3.2 (d) would present any drainage run-off concerns for engineering with Rob Geringer, City Engineer, advising he would need to review further. Motion to amend carried. Voting “yes” -- all members of the governing body with the exception of Mr. Brown, Ms. Broyles and Mayor Kaysen voting “no”. Upon inquiry Ms. Brennan provided information regarding redevelopment of the site where they have relocated their business and explained, even with a reduction to the amount of required trees, sidewalk and pavement would still have to be removed. Discussion topics included: UDC review and amendment process, “quick fixes” and other amendments; business owner responsibilities; Planning Commission involvement in amendments; whether the proposed ordinance will “fix” small business owners’ concerns; landscaping requirements as compared to other similar regional communities; landscaping (example: trees and shrubs) as a community enhancement or non-enhancement; redevelopment scenarios; tree point methodology and providing more flexibility, and comments in support and non-support of the proposed ordinance. Upon inquiry during discussion, Mr. Cammarata provided information on the UDC annual review process, noting there were a number of topics to manage and prioritize during this first annual review. He stated the priority was to get the “quick fixes” done; then the few items dealing with in-fill, and work on proposals to take to the Planning Commission for review and recommendations to then present to the governing body. Main motion as amended carried. Voting “yes” - all members of the governing body with the exception of Mr. Brown, Ms. Broyles and Mayor Kaysen.

ORDINANCE - Amending the Cheyenne Unified Development Code (UDC), to allow, after conditional discretionary review, Service Uses, Animal Care - Hospital/Clinic in the MUB Mixed-Use Business Emphasis and the NB Neighborhood Business zone districts and to allow, as a use permitted by right, Service Uses, Animal Care - Kennel in the LI Light Industrial zone district -- referred to Public Services Committee (sponsor -- Mr. Allen).

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from NB Neighborhood Business to MR-2 Medium Density Residential - Developing for Lots 15 and 16, Block 17, Crest Ridge, 4th Filing, Cheyenne, Wyoming (located south of and adjacent to Storey Boulevard, between Canyon and Ridge Roads) -- referred to Public Services Committee (sponsor -- Mr. Allen).

RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for Teton Business Park, a replat of Lots 1 thru 4, inclusive, Block One, Classic Subdivision, Cheyenne, Wyoming (located at the northeast corner of the intersection of Westland and Old Happy Jack Roads) (postponed from 08/26/13). Mr. Allen moved to adopt, seconded by Ms. Williams. Mr. Allen moved to postpone for two weeks (to Sept. 23, 2013), seconded by Mr. Shanor. It was noted that postponement is to allow for additional time to review soil testing. Motion to postpone carried. Voting “yes” -- all members of the governing body.

[CA] RESOLUTION - Approving Sanitary Sewer Service, by Outside User Sanitary Sewer Services Agreement, for Scott Johnson, Tract 4, Mountain View Homes, Laramie County, Wyoming. Motion (per Consent Agenda) carried. (#5525)

[CA] RESOLUTION - Authorizing submittal of an application to the Wyoming State Loan and Investment Board for a \$1 Million loan from the State Revolving fund for funding the Recycle Water System Extension Project and authorizing the Mayor, City Clerk and the Director of the Board of Public Utilities to sign all loan documents. Motion (per Consent Agenda) carried. (#5526)

[CA] RESOLUTION - Certifying that the Governing Body of the City of Cheyenne has agreed on the Secure Fencing County project to be submitted to the State Loan and Investment Board for the Biennial FY13/14 Countywide Consensus Block Grant funding in the amount of \$40,000 to replace the ADA paving SLIB Consensus project -- referred to Finance Committee (sponsor -- Mr. Brown).

[CA] RESOLUTION - Certifying that the Governing Body of the City of Cheyenne has agreed on the Sheriff Canine Training Facility Waterline County project to be submitted to the State Loan and Investment Board for the Biennial FY13/14 Countywide Consensus Block Grant funding in the amount of \$17,200 -- referred to Finance Committee (sponsor -- Mr. Brown).

Lease Agreement between City of Cheyenne, Information Technology Division, and Xerox by Xerox Agent XESI for a high volume production black and white copier (postponed from Aug. 26, 2013). Mr. Brown moved to approve, seconded by Mr. Luna. Mr. Brown moved to amend by substitute, seconded by Ms. Broyles. It was noted the proposed substitute changes the equipment installation date and adds a second addendum addressing time frames for maintenance response. Motion to amend carried. Voting "yes" -- all members of the governing body. Main motion as amended by substitute carried. Voting "yes" -- all members of the governing body. (#6061)

[CA] Consideration of FAA Grant #3-56-0005-50 between the City of Cheyenne, County of Laramie, and the Cheyenne Regional Airport Board in an amount not to exceed \$300,000.00 for the creation of a Sustainable Management Plan. Motion (per Consent Agenda) carried. (#6062)

[CA] Contract between the City of Cheyenne, Parks and Recreation Department, and Cheyenne Capitals Youth Hockey Association, for 2013 - 2014 youth hockey season at the City- owned Ice and Events Center -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne, Office of Youth Alternatives, and Laramie County School District No. 1 to provide services for students with disabilities for the 2013 - 2014 school year -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne, Office of Youth Alternatives, and Laramie County School District No. 1 to provide services for general education students for the 2013 - 2014 school year -- referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and BenchMark Engineers, P.C. for the Christensen Railroad Overpass and Corridor Project (1% Specific Purpose

Sales & Use Tax) -- referred to Finance Committee.

[CA] Amendment No. 1 to Memorandum of Understanding (Contract No. 5991) to increase the payment amount between the City of Cheyenne, Transit Division, and Laramie County, Wyoming, to provide public transportation services to Laramie County Community College, City/County Health Department, and an area of Laramie County adjacent to the City. Motion (per Consent Agenda) carried. (#5991)

[CA] Amendment No. 1 to City Contract No. 5874 and State Lease Agreement No. 8-09466 between the City of Cheyenne and State of Wyoming, Department of Administration and Information, Construction Management, for rental of parking spaces located at the Cox Parking Structure -- referred to Finance Committee.

[CA] Consideration of Bid #M-5-14 for a contract between the City of Cheyenne, Parks and Recreation Department, and L.E.R., Inc., d/b/a Renner, Denver, Colorado, for the Martin Luther King Jr. Tennis Court project (State & Local grants; private donations) -- referred to Finance Committee.

Appointment of Matt Pope to the Board of Public Utilities. Dr. Rinne moved to approve, seconded by Mr. Allen. Motion carried. Voting "yes" -- all members of the City Council with the exception of Ms. Williams voting "no". Mayor Kaysen did not vote (Mayoral appointment).

Announcement was made of the Appointment of Tricia S. Crilly to the Cheyenne Housing Authority Board to be confirmed September 23, 2013.

Under other business, comment was expressed that anyone in the community wishing to provide input on the landscaping ordinance discussed earlier in the meeting could contact City Council members. Success of Freedom's Edge Brewery event held over the weekend that monetarily benefitted local non-profit organizations was noted.

There being no further business to come before the governing body, the meeting was officially adjourned at 8:24 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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